

MSJ. (See CCP § 437c(q).)

Scottsdale's Objections

OBJ 3: Elster Decl. ¶ 8 and Exhibits 16 to 18. **Overruled.** See Plaintiff's RJN.

16. 9:00 AM CASE NUMBER: MSL21-01934

CASE NAME: LINDSEY CANNON VS. JUSTOURS, INC., A DELAWARE CORP.

HEARING ON MOTION IN RE: CONTINUE TRIAL AND FOR TOLLING OF 5-YEAR STATUTE

FILED BY: CANNON, LINDSEY

TENTATIVE RULING:

Introduction

Before the Court is , Plaintiffs Lindsey Cannon and Janine Bautista ("Plaintiffs")'s Motion to Continue Trial and Toll the Five-Year Rule under Code of Civil Procedure section 583.310. The motion is opposed by Defendant Intervenor Scottsdale Insurance Company.

For the following reasons, Plaintiffs' Motion to Continue Trial and Toll the Five-Year Rule are **granted**. Parties are ordered to appear to discuss a new trial date.

Factual Background

This action arises from a contract dispute between Lindsey Cannon ("Cannon" or "Plaintiff") and Janine Bautista ("Bautista" or Plaintiff) ("Cannon" and "Bautista" are collectively referred to as "Plaintiffs") and Defendant "JusTours, Inc., a Delaware Corp. dba JusCollege" ("Justours" or "Defendant"). Cannon commenced this action on September 3, 2021. Cannon alleges that from May, 2019 to January, 2020, she paid \$900 to JusTours for air transportation and hotel accommodations in Cabo San Lucas, Mexico ("Cabo trip"). Cannon further alleges that JusTours failed to provide the air transportation and other travel services for which Cannon paid JusTours. Cannon contends that she requested a refund from JusTours on or about August 12, 2020, but JusTours failed to provide her with a refund.

Procedural History

Complaint

In her initial complaint, Cannon sought a public injunction pursuant to California Business and Professions Code § 17200, et seq: (a) Defendant from committing future violations of Business & Professions Code § 17550; (b) requiring Defendant to comply with Business & Professions Code § 17550.14; and (c) establishing an effective monitoring mechanism to ensure Defendant's compliance with the injunction. (See, Docket Entry on 9/3/21.)

First Amended Complaint

On May 4, 2023, Cannon filed a First Amended Complaint ("FAC"), alleging causes of action for (1) public injunction regarding unlawful, unfair and prohibited acts and practices in violation of Business and Professions Code § 17200 et. seq. and 17550 et. seq.; (2) California class action for unlawful, unfair and prohibited acts and practices in violation of Business and Professions Code § 17200 et. seq. and 17550 et. seq.; and (3) California and nationwide class action for breach of contract. (See, Docket

Entry 5/4/23.)

Motion to Compel Arbitration

On November 19, 2021, JusTours filed a Motion to Compel Arbitration, which was denied on September 14, 2022. (Motion to Compel Arbitration dated November 19, 2021; Order re Motion to Compel Arbitration dated September 14, 2022.)

Intervention of Scottsdale Insurance

On May 2, 2024, JusTours filed a Notice to Court of Suspension of Corporate Status. Thus, JusTours was no longer able to defend itself in this action. JusTours is purportedly an insured of Scottsdale in connection with the claims arising in this case and therefore, Scottsdale intervened in this action on behalf of JusTours on August 19, 2024. (Order re Motion for Leave to Intervene dated August 19, 2024.)

Second Amended Complaint

On April 16, 2026 (over four and a half years after filing the original complaint), Cannon filed a Second Amended Complaint (“SAC”), which added Bautista as a co-class representative. (See, Docket Entry 4/16/26.) Bautista alleges that in approximately November 2019, she contracted with JusTours for JusTours to provide Bautista with air transportation in conjunction with other travel services. The air transportation was for both Plaintiffs’ travel between California and Mexico in March and April 2020. The travel services included a hotel in Cancun, Mexico (“Cancun trip”) for Bautista. Bautista paid JusTours approximately \$1,450.

Scottsdale has served written discovery upon Plaintiff and filed a motion for summary judgment scheduled to be heard on July 15, 2026. The trial in this matter is set for August 17, 2026, shortly before the five-year statute runs in this case.

Plaintiffs argue that the five-year limit should be tolled by “at least 946 days” because bringing the action to trial was “impossible, impracticable, or futile.” (Motion, 1:13-24.)

Legal Standard

A plaintiff must bring an action to trial within five years of initiating the complaint. (Code Civ. Proc., § 583.310.) This serves to “promote the trial of cases before evidence is lost, destroyed, or the memory of witnesses becomes dimmed ... [and to] protect defendants from being subjected to the annoyance of an unmeritorious action remaining undecided for an indefinite period of time.” (*General Motors Corp. v. Superior Court of Los Angeles County* (1966) 65 Cal.2d 88, 91.) “If an action is not brought to trial within this time, the trial court must dismiss the action either on its own motion or on motion of the defendant.” (*Barron v. Santa Clara County Valley Transp. Authority* (2023) 97 Cal.App.5th 1115, 1122 citing § 583.360, subd. (a).) “Dismissal is mandatory and not subject to ‘extension, excuse, or exception except as expressly provided by statute.’” (*Ibid.* quoting § 583.360 (b).) A plaintiff must exercise “reasonable diligence” in bringing a lawsuit to trial in a timely manner. (*Hocharian v. Superior Court* (1981) 28 Cal.3d 714, 721.)

The five-year period starts upon the filing of the initial complaint. (*Brumley v. FDCC California, Inc.* (2007) 156 Cal.App.4th 312, 318.) Considering the COVID-19 pandemic’s widespread impact on

the courts, the Judicial Council of California adopted an emergency rule that granted an extension by six months of the five years allotted to bring all civil actions to trial, applicable to those actions brought on or before April 6, 2020. (Cal Rules of Court, Appx., Emergency Rule 10 (a), *Ables v. A. Ghazale Brothers, Inc.* (2022) 74 Cal.App.5th 823, 827.)

When calculating the requisite five-year period, time is excluded during which the Court's jurisdiction was suspended, a stay or injunction was in place, or the plaintiff's ability to bring the action to trial is "impossible, impracticable, or futile." (Code Civ. Proc., § 583.340 (c).) "Determining whether the subdivision (c) exception applies requires a fact-sensitive inquiry and depends 'on the obstacles faced by the plaintiff in prosecuting the action and the plaintiff's exercise of reasonable diligence in overcoming those obstacles.' [Citation.]" (*Alpha Media Resort Investment Cases* (2019) 39 Cal.App.5th 1121, 1128.)

"The trial court is in the most advantageous position to evaluate [the] diverse factual matters" relating to the impracticability of bringing a case to trial. (*Brunzell Constr. Co. v. Wagner* (1970) 2 Cal.3d 545, 555.) "The plaintiff bears the burden of proving that the circumstances warrant application" of the exception. (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.)

The five-year calendar for prosecution of a civil action under section 583 is meant to "afford fair opportunity to bring a cause to trial, even though a part of the five-year period must necessarily be consumed in service of process, disposition of demurrers, amendment of pleadings, if necessary, usual and reasonable time consumed in waiting for a place on the court's calendar or in securing the attendance of a jury and suchlike usual and necessary proceedings...." (*Continental Pacific Lines v. Superior Court of Solano County* (1956) 142 Cal.App.2d 744, 750.)

Analysis

Tolling for Motion to Compel

Preston v. Kaiser Found. Hosps. establishes a bright-line rule—"the point for commencing the running of the time will not ordinarily be the filing of the complaint, but rather the order for arbitration. During the period between the filing of the complaint and the order for arbitration, it would generally not be possible or practical for the plaintiff to bring the matter to arbitration or trial." (*Preston v. Kaiser Foundation Hospitals* (1981) 126 Cal.App.3d 402, 408-09 [statutorily overruled on a separate issue by an amendment to Code Civ. Proc. § 581(f) in 1982].) This triggers the tolling exception set forth in CCP section 583.340(c). *Preston* further held that "the plaintiff should not be penalized for requiring the defendant to obtain a court order for arbitration nor should the plaintiff be penalized for any delay attributable to the defendant in obtaining an order for arbitration." (Id. at 410.)

Boutwell cited *Preston* for the proposition that "[c]ourts have applied this [tolling] exception to orders directing arbitration since between the filing of the complaint and the order for arbitration, it would generally not be possible or practical for the plaintiff to bring the matter to arbitration or trial. The limitations period, therefore, would ordinarily begin on the date of the order for arbitration, not the date plaintiff filed the complaint." (*Boutwell v. Kaiser Found. Health Plan* (1988) 206 Cal.App.3d 1371, 1374.) *Boutwell* stands for the same tolling principle as *Preston*: the period between the filing of a complaint and the resolution of a motion to compel arbitration is excluded from the five-year period under CCP section 583.340(c).

Scottsdale asserts that “Plaintiffs’ failure to litigate the case while waiting for Justours’ Motion to Compel Arbitration is Plaintiffs’ own fault.” (Opposition at p. 5:1-2.) This bare assertion is unsupported by any legal authority.

When a defendant files a motion to compel arbitration, the plaintiff has no choice but to respond to that motion and await the court’s ruling. A plaintiff cannot unilaterally proceed to trial while the motion is pending; doing so would violate the court’s authority to determine threshold issues of arbitrability. The moving party—here, Defendant—invoked the court’s jurisdiction to resolve a disputed legal question, and the resulting delay is attributable to the procedural mechanism itself, not to any lack of diligence by the plaintiff. The Opposition’s citation to *Hofer v. Boladian* proves Plaintiffs’ point. *Hofer*’s holding of a defendant’s waiver of the right to arbitrate through inconsistent litigation conduct demonstrates the futility of a plaintiff trying to seek discovery while a defendant’s motion to compel arbitration is pending. A defendant in such circumstances would risk waiving its right to arbitrate by responding to discovery while its arbitration motion was pending. A plaintiff who seeks discovery during the pendency of an arbitration motion would only burden the court with extraneous discovery-related motions.

Plaintiffs request a 299-day tolling of the five-year statute from the filing of the Motion to Compel Arbitration on November 19, 2021, to the denial of the motion on September 14, 2022. The Court grants the 299-day tolling of the five-year statute.

Tolling for Dissolution of JusTours

The complete disappearance of a defendant is not “part of the normal delays involved in prosecuting lawsuits” that do not toll the five-year rule. (*Martinez v. Landry’s Restaurants, Inc.* (2018) 26 Cal.App.5th 783, 796.) The obstacle here was not ordinary delay—it was the disappearance of the only defendant then defending the case. *Warner Bros. Entertainment Inc. v. Superior Court* found that the five-year rule was tolled during the 32-day period after the original plaintiff’s death because “it was impossible and impractical for plaintiff to pursue the action without a client, without a plaintiff in this case.” (Id. (2018) 29 Cal.App.5th 243, 267.) *Pham v. Wagner Litho. Mach. Co.* found that under the precursor to CCP 583.340, the five-year rule was tolled during “the period of time between plaintiff’s death and [the probate administrator’s] substitution as plaintiff.” (Id. (1985) 172 Cal.App.3d 966, 969; FN 3 (noting the relevant code section is now CCP § 583.340).) “The courts of this state have established decisionally certain implied exceptions where it would be impossible, impracticable or futile due to causes beyond a party’s control to bring an action to trial during the five-year period.” (Id. at 972.)

Scottsdale argues that *Warner Bros.* and *Pham* are “distinguishable” because both involved the death of a natural person rather than a corporate defendant. (Opposition at p. 5: 15-24.) This misses the point. The tolling principle in both cases is not tied to the legal status of the disappeared party but to the functional impossibility of prosecuting an action without a party to litigate against. *Pham* held that “plaintiff’s death here left no person or entity to prosecute the underlying action on her behalf,” and therefore “[i]t was during this period of temporary impracticability and futility that [the precursor to CCP § 583.340] operated to toll the five-year statute.” (*Pham*, 172 Cal.App.3d at 972-973.) The *Pham* court did not condition tolling on the biological nature of the disappeared party— it conditioned

tolling on whether the party's absence rendered prosecution "impracticable" or "futile."

Here, Defendant's disappearance created the identical obstacle. Defendant ceased functioning, disappeared from the litigation, failed to participate in discovery, and left no meaningful adversary until Scottsdale intervened. (Motion at pp. 3: 8- 5: 7.) Defense counsel stated there appeared to be "no company left" to provide substantive responses. (Motion at p. 5: 8-11.) Scottsdale itself acknowledged that Defendant was "no longer able to defend itself" and that attempts to contact Defendant had been unsuccessful. (Motion at p. 4: 11-15.)

Scottsdale's Opposition concedes the governing tolling principle: it characterizes both authorities cited by Plaintiffs as cases where tolling applied because the plaintiff died. (Opposition at p. 5:21-24.) A defendant that has ceased to exist, cannot be contacted, produces no discovery, and provides no witnesses is functionally indistinguishable from a deceased plaintiff. This renders the action impracticable to prosecute. The point is not whether a party is a natural person, but that litigation becomes impracticable when a necessary party disappears so completely that the action cannot meaningfully proceed against or through that party. Because CCP section 583.340(c) is designed to exclude periods when trial could not practicably be reached, and because California policy favors merits adjudication over dismissal for lack of prosecution, the period during which Defendant disappeared and no functioning adversary existed should be tolled. (Code Civ. Proc. §§ 583.130, 583.340(c).)

Plaintiffs request a 647-day tolling of the five-year statute from the filing of the Withdrawal of Defense Counsel on November 11, 2022, to the Intervention of Scottsdale Insurance on August 19, 2024. The Court grants the 647-day tolling of the five-year statute.

Plaintiffs Have Shown Reasonable Diligence in Prosecuting This Case

It is the Plaintiff's burden to prove the circumstances justify application of the exception under section 583.340 to the five-year rule. (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.) "What is impossible, impracticable or futile must be determined in light of all the circumstances in the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves." (*Moran v. Superior Court* (1983) 35 Cal.3d 229, 238.) "The 'reasonable diligence' standard is an appropriate guideline for evaluating whether it was impossible, impracticable, or futile for the plaintiff to comply with section 583(b) *due to causes beyond his or her control*." (Id.)

"[P]utative class member contact information is essential to a plaintiff's motion for class certification." (*Martinez*, 26 Cal.App.5th 783, 799.) In "non-PAGA class actions, the contact information of those a plaintiff purports to represent is routinely discoverable as an essential prerequisite to effectively seeking group relief." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 538.)

Plaintiffs posit that but for Defendant's disappearance, Plaintiffs would have obtained class lists and all evidence through ordinary discovery procedures. Without this information, Plaintiffs could not proceed with their class action. Only due to Plaintiffs' diligence and persistence, they independently located the necessary class contact information—a process that required one and a half years of effort. Defendant, and by extension, its insurer Scottsdale, should not benefit from the very obstacle Defendant created by disappearing. Plaintiffs' efforts after Defendant disappeared, included Plaintiffs:

- Serving deposition subpoenas on Alaska Airlines, discovering that Defendant's co-founder Andrew

Citores had purchased Plaintiff Cannon's airfare with his personal credit card;

- Serving deposition subpoenas on Victory Travel, Inc., the vendor from which Defendant purchased air travel for other class members;
- Serving a deposition subpoena on Robert Thede, Defendant's other co-founder;
- Filing separate lawsuits against Citores and Thede, leading to the production of Excel spreadsheets containing names, emails, and payment information for tens of thousands of Defendant's customers—the class list; and
- Conducting mass email outreach to a subset of class members, hundreds of whom responded within a few weeks. (Motion at p. 7: 1-22.)

Good Cause Exits for a Trial Continuance

The California Rules of Court Rule 3.1332 provides multiple grounds to continue a trial date including "a party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or [a] significant, unanticipated change in the status of the case as a result of which the case is not ready for trial. (Cal. Rules of Court, rule 3.1332(c).)

Excused Inability to Obtain Essential Material Evidence

Plaintiffs contend their document requests and deposition notice to Defendant's corporate witness were followed by defense counsel's admission that they "cannot serve substantive and verified responses for an entity that seemingly no longer exists." (Motion at p. 6: 9-22.) Plaintiffs exercised diligence by pursuing third-party discovery, subpoenaing Defendant's co-founders, filing separate lawsuits, and ultimately obtaining class-member data through creative litigation tactics. (Motion at p. 7: 1-22.)

Significant Unanticipated Change in the Status of the Case

Plaintiffs contend that the June 10, 2026, ruling denying class certification constitutes a significant and unanticipated change in the status of the case within the meaning of Rule 3.1332(c)(7). Plaintiffs pursued class certification and sought expedited hearing dates through two ex-parte applications to comply with the existing trial schedule. The Court denied certification solely based on the timeliness of the motion. (See 06/10/2026 Minute Order for the Class Certification Hearing.) That ruling fundamentally altered the posture of the litigation. Plaintiffs take the position that they do not seek a continuance because they failed to prepare the case; rather, they seek a continuance because the current trial date has become incompatible with the orderly adjudication of the class certification.

Other Factors to be Considered

Plaintiffs contend that although the August 17, 2026, trial date is approaching, Plaintiffs brought this motion promptly after the Court's June 10 ruling revealed the necessity of a continuance. There has been no prior continuance of the trial date requested by Plaintiffs. Plaintiffs seek only the amount of additional time necessary to permit class certification proceedings and trial preparation to be completed in a manner consistent with due process and the Court's scheduling requirements. Conversely, denial of a continuance would substantially prejudice Plaintiffs and the absent class members by preventing adjudication of meritorious class claims.

Defendant Scottsdale argues that a continuance would prejudice Scottsdale who has been diligently litigating this case, that interests of justice would best be served by letting trial proceed as scheduled, no other factor is relevant to the fair determination of the motion, and Plaintiffs failed to provide an adequate showing of good cause to continue the trial. (Opposition at p. 4: 6-10.)

Trial Continuance Duration

The Court agrees with Defendant Scottsdale that a trial continuance of 946 (over two and a half years), is unreasonable. However, Plaintiffs did not propose any new dates for a new trial date in their papers.

The Court orders the parties to appear to discuss new trial dates at the hearing.

Conclusion

For the reasons analyzed above, Plaintiffs' Motion to Continue Trial and Toll the Five-Year Rule are granted. Parties are ordered to appear to discuss a new trial date. The Parties are ordered to appear via Zoom for a Trial Setting Conference. The Trial calendared for August 17, 2026 is **vacated**. The Issue conference scheduled for July 17, 2026 at 8:30 a.m. is **vacated**. The Parties are ordered to notify the settlement mentor.

17. 9:00 AM CASE NUMBER: N26-0360
CASE NAME: CLAIM OF:ASSER ABDELMATIASSER ABDELMATI
HEARING ON MINOR'S COMPROMISE

FILED BY:

TENTATIVE RULING:

Summary

Petitioner Ahmed Abdelmatti's ("Petitioner") Petition for Approval of Compromise of Minor Asser Abdelmatti (DOB 6/5/2011) ("Minor") Claim is **granted**, as set forth below. No appearance is required at the hearing on July 15, 2026, provided Petitioner complies with the Court's order below.

Background

On February 27, 2026 Petitioner, parent and guardian ad litem for her child, Minor filed the Petition to compromise the claim that Minor had against Kristin Howes (insured) related to an accident that occurred on September 30, 2024 in Brentwood, California in Contra Costa County. In that accident, Minor sustained injuries his right leg when insured struck him while he was on a scooter. Petitioner represents that Minor has received treatment at urgent care. He has fully recovered and there are no permanent injuries.

The Defendant's insured offered settlement in the amount of \$10,000, of which \$9,750.14 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$249.86 represents a negotiated deduction from the settlement, which is used to satisfy the liens for medical expenses. Petitioner represents herself in propria persona and no attorneys have been incurred. The Court notes that the carrier's attorney has assisted Petitioner in preparing the Petition and accompanying papers. Petitioner prepared a proposed order to deposit funds into a blocked account